

SENATE BILL 520

By Roberts

AN ACT to amend Tennessee Code Annotated, Title 64,
Chapter 1, Part 11, relative to the West
Tennessee River Basin Authority.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 64-1-1101(b), is amended by deleting "Hatchie, Loosahatchie, Obion and Forked Deer River basins" and substituting "river basins in the authority service area".

SECTION 2. Tennessee Code Annotated, Section 64-1-1101(b)(4), is amended by deleting "and the creek and river basins that flow through the counties of Benton, Decatur and Hardin into the Tennessee River" and substituting "through education, outreach, and science".

SECTION 3. Tennessee Code Annotated, Section 64-1-1101, is amended by deleting subsection (c) and substituting:

(c)

(1) These activities are accomplished in the authority service area that is composed of Lauderdale, Lake, Dyer, Obion, Madison, Weakley, Henry, Gibson, Carroll, Benton, Decatur, Hardin, Haywood, Crockett, Henderson, Chester, McNairy, Tipton, Fayette, Hardeman, Perry, Stewart, Houston, and Humphreys counties.

(2) Notwithstanding subdivision (c)(1), when conducting activities in Perry, Stewart, Houston, or Humphreys county, the authority shall only provide technical assistance, engineering services, and project management support to such county.

SECTION 4. Tennessee Code Annotated, Section 64-1-1103, is amended by deleting "Hatchie, Obion and Forked Deer River basins" in subdivisions (7) and (8) and substituting "authority service area".

SECTION 5. Tennessee Code Annotated, Section 64-1-1103, is amended by deleting subdivision (16) and substituting:

(16) Obtain funds from county governments for purposes of planning, acquisition of land and facilities, and construction, operation, management, and maintenance of all works, facilities, and programs particularly required by such county or counties. County governments are empowered, but are not required, to impose taxes to accomplish these programs. Such taxes, if imposed, must be upon all real property lying within the authority service area as situated in the respective counties, and such tax shall be imposed on that property determined by the county as benefiting from the works of improvement and programs of the authority;

SECTION 6. Tennessee Code Annotated, Section 64-1-1103(18), is amended by deleting "the Obion-Forked Deer basin authority" and substituting "the authority".

SECTION 7. Tennessee Code Annotated, Section 64-1-1104(a)(3), is amended by deleting "Hatchie, Obion and Forked Deer River basins" and substituting "authority service area".

SECTION 8. Tennessee Code Annotated, Section 64-1-1104(b), is amended by deleting "for the Hatchie, Obion, and Forked Deer River basins".

SECTION 9. Tennessee Code Annotated, Section 64-1-1109(a), is amended by deleting the subsection and substituting:

(a)

(1) This part applies only to the counties of Lauderdale, Lake, Dyer, Obion, Madison, Weakley, Henry, Gibson, Carroll, Benton, Decatur, Hardin,

Haywood, Crockett, Henderson, Chester, Tipton, Hardeman, Fayette, McNairy, Houston, Humphreys, Stewart, and Perry, which may, upon approval by a majority vote of the respective county legislative body, elect to participate in such programs as set out in this part, except as provided in § 64-1-1101(c)(2).

(2) If such an election is made, this part applies to all counties making such an election, except as provided in § 64-1-1101(c)(2).

SECTION 10. This act takes effect upon becoming a law, the public welfare requiring it.